

2019 P L C (C.S.) 952

[Lahore High Court (Bahawalpur Bench)]

Before Jawad Hassan, J

Syed ALI NAQI

Versus

GOVERNMENT OF THE PUNJAB and others

Writ Petition No. 5090 of 2018, decided on 6th March, 2019.

Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974---

---R. 17-A---Constitution of Pakistan, Art. 10-A---Contract employee of a hospital--- Allegation of making videos during operation of female patients in operation theater--- Termination from service---Scope---Contention of employee was that major penalty of termination from service could not be awarded without conducting regular inquiry--- Validity---Petitioner-employee was appointed on contract basis for three years---Show-cause notice was issued to the employee to which he filed reply and confessed his guilt---Employee was afforded personal hearing and he could not justify his innocence---Regular inquiry in the present matter was not necessary---Serious allegations had been leveled against the employee to which he had confessed---Impugned order had rightly been passed, in circumstances--- Constitutional petition was dismissed accordingly.

Osman Ghani v. Federal Service Tribunal and others 1986 SCMR 1875; The Secretary, Government of the Punjab and others v. Riaz ul Haq 1997 SCMR 1552; Allem Jaffar v. WAPDA through its Chairman and others 1998 SCMR 1445; Syed Yaqoob Shah v. Xen PESCO and others PLD 2002 SC 667 and Federation of Pakistan and others v. Tahir Latif 2007 SCMR 152 distinguished.

Muhammad Hafeez Khan Mastoi for Petitioner.

Ch. Shahid Mahmood, Assistant Advocate-General for Respondents.

JUDGMENT

JAWAD HASSAN, J.---Through this petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has challenged the validity of the orders dated 30.10.2017 passed by the Respondent No.2 whereby his services have been terminated on the allegation of involvement in making and

leaking videos during operation of females patient in Operation Theater of THQ Hospital Ahmedpur East and dated 08.02.2018 (announced on 25.01.2018) passed by the Respondent No.1 whereby his Appeal against the said order was dismissed.

2. Learned counsel for the Petitioner inter alia submitted that the impugned orders are against the law and facts; that the Respondent No.2 was not the competent authority to pass the impugned order; that the Petitioner never involved in any such like activity of making videos of female patients as his duty was in the office of Medical Superintendent and not in the operation theater; that the major penalty of termination from service cannot be given without conducting regular inquiry; that the Petitioner has not been given opportunity of fair trial as such there is violation of Article 10-A of the Constitution; that the Petitioner has never confessed the alleged guilt however on the blank paper the thumb impression of the Petitioner were obtained by the Respondents; that the impugned orders have been passed without any reasonable ground; that as the Petitioner was appointed under Rule 17-A of the Punjab Civil Servants (Appointment and Conditions of Services) Rules, 1974 (the "Rules"), therefore, being the permanent employee the regular inquiry was to be conducted in the case of the Petitioner. In support of his contentions learned counsel has placed reliance on the cases titled Osman Ghani v. Federal Service Tribunal and others (1986 SCMR 1875), The Secretary, Government of the Punjab and others v. Riaz ul Haq (1997 SCMR 1552), Allem Jaffar v. WAPDA through its Chairman and others (1998 SCMR 1445), Syed Yaqoob Shah v. Xen PESCO and others (PLD 2002 Supreme Court 667) and Federation of Pakistan and others v. Tahir Latif (2007 SCMR 152).

3. On the contrary, learned Law Officer vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the impugned orders have rightly been passed by the Respondents, as serious allegation have been levelled against the Petitioner to which he confessed in writing; that the Petitioner has committed offence of shameful nature, as such does not deserve any leniency.

4. I have heard the arguments of both the sides and perused the record.

5. The Petitioner was appointed as Naib Qasid under Rule 17-A of the Rules in the Respondents Department (THQ Hospital Ahmadpur East) for a period of three years on contract basis vide order dated 28.12.2015. After proving allegations in an inquiry conducted against the Petitioner due to involvement in making and leaking videos during operation of female patient in Operation Theater of THQ Hospital Ahmedpur East, a show cause notice was issued to him on 13.10.2017 to which the Petitioner specifically filed reply and confessed his guilt that he made the videos in the operation theater of THQ Hospital Ahmadpur East and provide the same to Mr. Muhammad Atiq, Operation Theater Assistant. After his confession, the Petitioner was issued a personal hearing notice directing him to appear before the Respondent No.2 on 14.10.2017 during which proceedings, number of questions were given to the Petitioner regarding the above referred allegation who again confessed the same and could not justify his innocence. In result thereof, the Respondent No.2 passed the impugned order terminating the services of the Petitioner. Feeling aggrieved thereby the Petitioner filed W.P. No.9314/2017 which was dismissed as withdrawn on

07.11.2017. Thereafter, the Petitioner preferred an Appeal before the Respondent No.1 which was dismissed vide the impugned order dated 08.02.2018. The Petitioner then approached to the Service Tribunal by preferring an Appeal which dismissed the same as withdrawn on the statement of counsel for the Petitioner at bar that since the Petitioner is a contract employee, therefore, he wants to avail remedy before this Court.

6. In view of the facts and circumstances narrated above, it is crystal clear that the Petitioner has confessed the commission of allegation against him, therefore, there was no need to hold a permanent inquiry and the impugned order has rightly been passed. The contention of the Petitioner that he has never confessed his guilt rather his thumb impressions were obtained on the blank paper is not instructive because the Respondents have appended with the report and parawise comments copies of the reply to show-cause notice as well as reply to the questions during personal hearing which vividly depict that he confessed the guilt in writing by putting his thumb impression and make signatures thereon. As such, at this stage he cannot deviate from the same mere saying that he has never admitted the commission of guilt. Furthermore, none else but the counsel for the Petitioner himself stated at bar before the Service Tribunal that since the Petitioner is a contract employee, therefore, he wants to avail remedy before the Hon'ble High Court. After passing the impugned orders the Petitioner remained no more in service and that too keeping in view the above statement at bar, at this juncture he cannot claim that he is a regular employee of the Respondents and cannot be terminated in such a way. Serious allegations of disrespect and humiliation of making videos of female patients in the operation theater were levelled against the Petitioner to which he confessed, therefore, he was rightly terminated from service and does not deserve any type of leniency. Such like practice should be curbed with iron hands so that no one can dare to commit such like practice/incidents/offence, henceforth. Furthermore, the judgments cited by the learned counsel for the Petitioner do not support him as each and every case has its own facts and circumstances, therefore, cannot relied upon.

7. On the touchstone of the above discussion, the petition in hand is without any merit, therefore, dismissed accordingly.

ZC/A-27/L

Petition dismissed.